

Court No. - 29

Case :- WRIT - C No. - 14156 of 2019

Petitioner :- Amity Infra Developers Pvt. Ltd.

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Himadri Batra, Anurag Khanna
Senior Advocate

Counsel for Respondent :- C.S.C., Amit Krishna, Amrendra
Nath Singh, Mahboob Ahmad

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

Heard Miss Himadri Batra, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel appearing for respondent Nos. 5 and 6.

The petitioner is aggrieved by the amendment to Clause 4.9 of the U.P. Electricity Supply Code, 2005 whereby all single point electricity connections have been directed to be converted into multiple point connections.

On the aforesaid point, several writ petitions have already been entertained. Therefore, we direct this petition to be listed along with Writ C No. 4545 of 2019 (M/s Maxbills Construction Pvt. Ltd. Vs. State of U.P. and 4 others) which is similar in nature.

In the meantime, parties may exchange and complete the pleadings.

Having regard to the facts and circumstances of the case, we provide that as an interim measure, the respondents shall not take coercive methods to disconnect the electricity of the petitioner provided petitioner continues to pay the monthly bills regularly and do not default in payment thereof and at the same time, it will be open for the respondents to process the individual applications of the residents of the building, if received for the purposes of individual connections and to sanction connections subject to the decision of the writ petition.

The petitioner will not create any hindrance in the sanctioning of the individual electricity connections to the residents of the building.

Order Date :- 23.4.2019

Nirmal

Court No. - 29

Case :- WRIT - C No. - 14156 of 2019

Petitioner :- Amity Infra Developers Pvt. Ltd.

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Himadari Batra, Anurag Khanna
Senior Advocate

Counsel for Respondent :- C.S.C., Amit Krishna, Amrendra
Nath Singh, Mahboob Ahmad

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

Sri Mahboob Ahmad, learned counsel appearing for the respondents no.5 and 6 has sent illness slip.

Ms. Himadari Batra, learned counsel for the petitioner submits that the matter is urgent and the clarification of the order is necessary.

In view of the above, put up this matter on Monday, i.e. on 13.5.2019. She will inform about this order to Sri Mahboob Ahmad in writing.

Order Date :- 10.5.2019

Pramod Tripathi

Court No. - 29

Case :- WRIT - C No. - 14156 of 2019

Petitioner :- Amity Infra Developers Pvt. Ltd.

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Himadari Batra, Anurag Khanna Senior Advocate

Counsel for Respondent :- C.S.C., Amit Krishna, Amrendra Nath Singh, Mahboob Ahmad

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

The petitioner has applied for clarification/modification of the order dated 23.4.2019 whereby pending writ petition as an interim measure we have directed that no coercive steps shall be taken to disconnect the electricity of the petitioner provided petitioner pays monthly bill regularly and at the same time has given liberty to the respondents to process the applications of the individual residents for grant of new electricity connections subject to the decision of the petition.

The petitioner submits that in processing the individual applications for connection the respondents are granting connections through the connection of the petitioner with the result that the billing will be through the meter of the petitioner.

In the order dated 23.4.2019 we have clearly directed the respondents to consider the applications of the individual for connection meaning thereby for fresh independent connections and not for installation of any sub-meter or connection through the meter single point connection already in existence.

The application is disposed of with the above clarification.

It will be open for the owners or the residents to apply for impleadment.

Order Date :- 13.5.2019

SKS

Court No. - 39

Case :- WRIT - C No. - 14156 of 2019

Petitioner :- Amity Infra Developers Pvt. Ltd.

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Himadari Batra, Anurag Khanna Senior Advocate

Counsel for Respondent :- C.S.C., Amit Krishna, Amrendra Nath Singh, Mahboob Ahmad

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

Impleadment Application filed by Sri Anshuman Vidhu Chandra is taken on record.

Ms. Himadari Batra, learned counsel for the petitioner prays for and is granted a week's time for filing objection/reply.

List on 24 May, 2019.

Order Date :- 15.5.2019

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Court No. - 39

Case :- WRIT - C No. - 14156 of 2019

Petitioner :- Amity Infra Developers Pvt. Ltd.

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Himadari Batra, Anurag Khanna Senior Advocate

Counsel for Respondent :- C.S.C., Amit Krishna, Amrendra Nath Singh, Anshuman Vidhu Chandra, Mahboob Ahmad

Hon'ble Arvind Kumar Mishra-I, J.

Hon'ble Om Prakash Tripathi, J.

Heard Sri Himadari Batra, learned counsel for the petitioner.

Learned counsel for the petitioner does not want to press this writ petition.

Hence, this writ petition is **dismissed as withdrawn**.

Order Date :- 1.12.2021

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